

STANDING ORDER

No. 316/C&T, AC-1/PHQ.

Subject :- Right to Information Act, 2005.

Whereas it is deemed necessary to lay down a standard procedure to implement different provisions of the Right to Information Act, 2005 by Public Information Officer, APIO and Appellate Authority in different Districts and Units of Delhi Police, the following guidelines are hereby issued :

1. Receiving the applications for seeking information under the Act (Section-6)

- (i) Any person who desire to obtain information under this Act can make an application to the PIO/APIO of the concerned District/Unit.
- (ii) Even if a person makes an oral request, his/her request shall be reduced in writing.
- (iii) Every application made under section 6 shall be accompanied by fees as per Rule 4 and 5 of Right to Information (Regulation of Fee & Cost), Rules, 2005 (copy enclosed).

Note :- Rules in GFRs regarding receiving money on behalf of Government and crediting into Government Accounts.

As per Rule 2 of the GFRs, the Accounts Officer means :

"The Head of an office of accounts or the Head of a P.A.O. set up under the scheme of departmentalization of Accounts." (Rule-2).

The above definition makes it clear that an Accounts Officer is one who is the Head of an office of accounts.

In the Police Department, Delhi there is no post of Accounts Officer. 'The head of an office of Account' in the various Districts/Units is looked after by the Drawing & Disbursing Officer (DDO), who are the Gazetted Officers of the level of ACP. Hence, these DDOs are the persons looking after accounts work.

As per Rule 22(1) of Receipts & Payments A/cs, all Government Officers receiving money on behalf of the Govt. shall have to use form GAR-6. Thus, any money received on behalf of government is acknowledged by issue of receipt in form GAR-6 by the DDOs and subsequently deposited into the accredited bank and is duly reflected in receipt scrolls issued by the bank to concerned PAO for reconciliation.

The amount so received by the DDO may be deposited into Revenue Receipt Head 0055-Police Misc.

- (iv) No person shall be required to give any reasons for seeking the information or any other personal detail except those that may be necessary for contacting the person making application.
- (v) Where an application is made for an information which is not held by the concerned District/Unit but by some other public authority or a part of which is held by some other public authority or which is more closely connected with the function of any other public authority, such application shall be transferred or such part of the application as may be appropriate to that other public authority and inform the applicant immediately about such transfer but in no case later than five days from the date of receipt of the application.

2. **Disposal of the request (Section-7)**

- (i) Public Information Officer/APIO on receipt of the request Under Section 6 shall as expeditiously as possible and in any case within 30 days of the receipt of the request either provide the information or reject the request for any of the reasons specified in Section 8 and 9 of the Act.
- (ii) Where the information sought for concerns the life or liberty of a person, the same shall be provided within 48 hours of the receipt of the request.
- (iii) PIO/APIO shall charge the fee representing the cost of providing the information and in this regard applicant shall be intimated about the cost.
- (iv) Where the request has been rejected, the PIO shall communicate to the person making the request, the reasons for the rejection, the period within which an appeal against such rejection may be preferred and the particulars of the Appellate Authority.
- (v) Information sought for shall ordinarily be provided in the form in which it is sought unless it would disproportionately divert the resources of the public authority or would be detrimental to the safety or preservation of the record in question.

3. **Severability (Section-10)**

- (i) Where a part of information can not be provided due to the exemptions Under Section 8 and/or 9 of the Act but some part can be provided, the PIO shall provide only that much information which is allowed under the Act. In such a case PIO shall inform the applicant that only part of information

requested, after severance of the record, is being provided. The reasons for such a decision shall also be given; name and designation of the person giving decision, details of the fee collected for providing such information and the right of the applicant with respect to the review of the decision regarding non-disclosure of part of the information shall also be communicated to the applicant.

4. **Third Party Information (Section-11) :**

- (i) Where the information sought intends to disclose any information or record or part of thereof which relates to or has been by a third party and has been treated as confidential by the third party, the PIO shall within five days from the receipt of the request give a written notice to such third party and invite the third party to make a submission in writing or orally regarding whether the information should be disclosed or not and such submission of the third party shall be kept in view while taking a decision about disclosure of information. The third party shall within 10 days from the date of receipt of the notice from PIO, be given the opportunity to make representation against the proposed disclosure. After the representation of the third party, the PIO shall make a decision as to whether or not disclose the information or record or part thereof and give in writing the notice of his decision to the third party. Third party has a right to prefer an appeal against such decision.

5. **Monitoring and reporting (Section-25) :**

- (i) Each PIO in relation to his District/Unit shall collect and provide such information to Police Hdqrs. as is required to prepare annual report Under Section 25 of the Act. Each report shall state in respect of the year to which the report relates –
- The number of requests made to each public authority;
 - The number of decisions where applicants were not entitled to access to the documents pursuant to the requests, the provisions of this Act under which these decisions were made and the number of times such provisions were invoked;
 - The number of appeals referred to the Central Information Commission or State Information Commission, as the case may be, for review, the nature of the appeals and the outcome of the appeals;

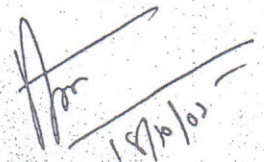
- Particulars of any disciplinary action taken against any officer in respect of the administration of this Act;
- The amount of charges collected by each public authority under this Act;
- Any facts which indicate an effort by the public authorities to administer and implement the spirit and intention of this Act;
- Recommendation for reform, including recommendations in respect of the particular public authorities, for the development, improvement, modernization, reform or amendment to this Act or other legislation or common law or any other matter relevant for operationalising the right to access information.

6. Maintenance of records

- (i) Every PIO/APIO shall maintain a register for entering the details of the application, for example, name of the applicant, date of the application, subject matter of the application, information sought in the application and the final disposal of the application.
- (ii) General Administration Branch of Police Hdqrs. shall compile all the reports received from Districts/Units and shall prepare a report for entire Delhi Police for its onward transmission to State Information Commission after the approval of Head of the Department.

7. Removal of doubts

Wherever there is any doubt, the provisions of Right to Information Act, 2005 and Right to Information (Regulation of Fee & Cost Rules), 2005 shall be referred to.


18/10/05

(KISHAN KUMAR)
ADDL. COMMISSIONER OF POLICE,
GENERAL ADMINISTRATION, DELHI.
FOR COMMISSIONER OF POLICE, DELHI.